

was negligent in its maintenance of the road and that the City of London breached its statutory duty under s. 44 of the *Municipal Act, 2001*, S.O. 2001, c. 25 to keep the road in a state of repair that was reasonable in the circumstances.

[2] Mr. Valerio attributes several injuries to the accident. In addition to significantly impairing his enjoyment of life and living with ongoing pain, he argues that he was unable to complete renovations on a retirement property on schedule. He therefore claims for lost income that he says he would have derived from the rental and eventual sale of his common law spouse's, the plaintiff Sandra Abell's, condo. Ms. Abell also advances a claim under s. 61 of the *Family Law Act*, R.S.O. 1990, c. F.3 for loss of care, guidance and companionship given the impact the accident had on Mr. Valerio and their relationship. Finally, the plaintiffs argue that Mr. Valerio's mother, Santa Valerio, was injured in the accident and she seeks general damages for a soft tissue injury.

[3] This was an unusual trial. The plaintiffs did not lead expert evidence to prove that the defendants breached the standard of care. Expert evidence was required to establish the standard of care expected of a road contractor. Even if I were wrong in this, the only evidence regarding the standard of care was led by the defendants, and the evidence showed that they met it. The water valve was at a safe height and was sufficiently marked. Moreover, there is available inference as to the cause of the accident other than any negligence on the part of the defendants: the accident could have been caused by the state of Mr. Valerio's vehicle and his speed.

[4] I thus dismiss the plaintiffs' action.

II. Background

A. The parties

Joseph Valerio

[5] The plaintiff Joseph Valerio is a schoolteacher working for the London District Catholic School Board. He has been teaching since 1996. He teaches technology, which includes instructing students on how to build construction projects, use equipment safely and understand different building materials and their costs. He has also taught transportation technology, welding, car maintenance, motorcycle repair, and snowmobile repair. At his current school, he teaches students how to repair mostly smaller items.

[6] Mr. Valerio also teaches a summer cooperative education program geared towards placing students on job sites, where they learn from mentors in skilled trades. He was one of the founders of the program, which has expanded significantly. It now encompasses construction, transportation technology, manufacturing, communication technology, design technology, and aviation.

[7] After the accident, Mr. Valerio co-founded and developed a student reintegration program that reached out to students who had left high school without their diploma and would bring them back to school to complete their diploma requirements.

[8] He was 44 at the time of the accident, and 55 at the time of the trial. He testified that he has been in a common law relationship with the plaintiff Sandra Abell for 22 years. Mr. Valerio has lived in London his entire life.

[9] Mr. Valerio's father specialized in church restoration. Mr. Valerio assisted his father in the family restoration business. Mr. Valerio is talented and experienced at restoration. This experience gave him the skills to undertake significant construction and finishing work on his secondary property.

[10] His family owned an 1872 schoolhouse in Thames Centre, Ontario. It was the workshop for the family business. Mr. Valerio took possession of the schoolhouse in the mid-1990s and decided to convert it into a residence with a workshop. He began renovations in the early 2000s, and worked on it primarily during the summers when he was not teaching.

[11] The property consists of a single room schoolhouse, a workshop, and a three-level addition. Mr. Valerio completed the bedroom and primary bathroom on the top level of the addition. On the second level, there was a kitchen and living room area.

[12] As his parents aged, Mr. Valerio was their principal caregiver and spent considerable time helping them around their house. Mr. Valerio's father, Giuseppe Valerio, who was also a plaintiff, passed away. His claim was discontinued.

Santa Valerio

[13] Santa Valerio was 82 at the time of the accident and 93 at the time of the trial. She did not testify. There is evidence before me that she has been diagnosed with dementia. Mr. Valerio was appointed as her litigation guardian. He elected not to bring a motion for leave to read in Santa's discovery evidence at trial under r. 31.11 of the *Rules of Civil Procedure*, R.R.O. 1990, Reg. 194.

Sandra Abell

[14] At the time of trial, Sandra Abell was 60 years old. She was 47 at the time of the accident. She testified that she has been in a common law relationship with Mr. Valerio for 23 years. She is now retired but at the time of the accident she was employed as a supervisor in the IT department of the London District Catholic School Board.

B. The accident

[15] Around 6:45 pm on August 7, 2013, Joseph Valerio was driving back from the schoolhouse with his parents to their home in his 1998 Plymouth Grand Voyager minivan. Visibility was good: it was not raining or foggy. Road conditions were good: it was summer and there had been no rain. The road was not wet or slippery. Santa Valerio was in the front right passenger seat. Joseph Valerio's father was sitting in the rear right passenger seat, behind Santa Valerio.

[16] Joseph Valerio was driving westbound on Dundas Street in the rightmost lane. Traffic was moving well. He did not know his exact speed, as he did not check the speedometer, but he believed it was between 40-50 kilometres per hour. He entered the intersection at Dundas Street and Clarke Road. There was a big bang. The airbags deployed. Mr. Valerio's hand was blown off the steering wheel. Mr. Valerio then drove slowly through the intersection and pulled over to the right side of the road.

[17] The road was under construction and had been milled down. There were two water valves in the intersection. Mr. Valerio's minivan struck the second water valve as they travelled from east to west. Each water valve was ramped with asphalt and marked with fluorescent orange paint.

[18] At trial, Mr. Valerio testified that he was aware that there was construction when he approached the intersection and saw an elevated object, which was orange. He testified that he drove to straddle the object. But it was put to him on cross-examination that at discovery his evidence was that he did not see what he hit. He explained that he straddled the orange arrow on the road, but he did not see the valve. It was further put to him on cross-examination that at discovery his evidence was that he did not see the orange marking at the time; he only saw it after the accident. He admitted on cross-examination that his memory was better in 2016 when he was examined for discovery.

[19] Mr. Valerio did not recall seeing construction pilons, barricades or signs on the westerly direction of Dundas Street. But he did notice construction on Clarke Road to the right of him and he agreed on cross-examination that the striped "tiger barrels" on Clarke Road would be visible to motorists travelling on Clarke Road and to motorists travelling on Dundas Street.

[20] Following the accident, Mr. Valerio called the police. Once the police attended, he brought his parents home. He then returned that evening to the scene of the accident and took photos around 7:45 pm. He took a series of photos again later that night around 8:45 pm. Finally, he took photos of the intersection the following morning.

[21] Based on the photos of the intersection taken by Mr. Valerio on the evening of the accident, I find that the water valves were marked and the markings were visible. Moreover, the Foreman's Daily Work Record for the intersection indicates that the water valves were protected through ramps, paint, and signage.

[22] Following the accident, City workers put down some cold mix asphalt around the valves as additional ramping. Trevor Shadbolt, who was the project superintendent for Dufferin Construction at the time of the accident, also attended the scene that evening. He observed the conditions of the road and valve, which the undercarriage of Mr. Valerio's minivan struck. I will return to his evidence below.

III. Analysis

A. General principles governing liability

[23] The duty and standard of care of a road contractor and a municipality are governed by different legal frameworks. A road contractor's duty arises either under common law negligence principles or under s. 3 of the *Occupiers' Liability Act*, R.S.O. 1990, c. O.2. By contrast, the duty of a municipality to maintain a roadway is governed by s. 44(1) of the *Municipal Act, 2001*.

Framework to assess Dufferin Construction's liability

[24] Here, the plaintiffs advanced their case against Dufferin Construction based on common law negligence. I note, however, that in at least one case, this court held that the liability of road contractors is more appropriately determined under the *Occupiers' Liability Act*: see e.g., *Miles v. Corporation of the County of Elgin et al.*, 2020 ONSC 6014, 69 M.V.R. (7th) 1, at paras. 33-35. By contrast, the Court of Appeal for Ontario has applied common law negligence principles to road contractors: see e.g., *Morsi v. Fermar Paving Ltd.*, 2011 ONCA 577, 283 O.A.C. 247, at para. 24, leave to appeal refused, [2011] S.C.C.A. No. 487. For my analysis on the standard of care below, nothing turns on this distinction. This is because the statutory standard of care under s. 3 of the *Occupiers' Liability Act* is effectively the same as the standard of care under common law negligence principles: *Waldick v. Malcolm* (1991), 70 O.R. (2d) 717 (C.A.), at pp. 722-25, aff'd [1991] 2 S.C.R. 456. Put differently, the "statutory analysis is guided by general negligence principles": Erika Chamberlain & Stephen Pitel, eds., *Fridman's The Law of Torts in Canada*, 4th ed. (Toronto: Carswell, 2020), at p. 717. I will therefore analyze the case against Dufferin Construction based on the principles of common law negligence.

[25] It is convenient to address the principles applicable to Dufferin Construction, then discuss the principles that apply to the City.

[26] To establish that Dufferin Construction is liable in negligence, the plaintiffs must show:

1. That the defendant owed a duty of care to the plaintiffs to avoid the kind of loss alleged;
2. That the defendant breached the applicable standard of care;
3. That the plaintiffs sustained damage; and
4. That such damage was caused, in fact and in law, by the defendant's breach.

See *Saadati v. Moorhead*, 2017 SCC 28, [2017] 1 S.C.R. 543, at para. 13.

Framework to assess the City's liability

[27] Turning to municipal liability, s. 44 of the *Municipal Act, 2001* imposes the following duty on the City and creates a statutory cause of action:

Maintenance

44 (1) The municipality that has jurisdiction over a highway or bridge shall keep it in a state of repair that is reasonable in the circumstances, including the character and location of the highway or bridge.

Liability

(2) A municipality that defaults in complying with subsection (1) is, subject to the *Negligence Act*, liable for all damages any person sustains because of the default.

[28] Subsection 44(3) of the *Municipal Act, 2001* creates statutory defences and subsection (4) permits the Minister of Transportation to make regulations establishing minimum standards of repair.

[29] The following four-step analysis of statutory liability applies under s. 44:

1. Non-repair: The plaintiff must prove on a balance of probabilities that the municipality failed to keep the road in question in a reasonable state of repair.
2. Causation: The plaintiff must prove the “non-repair” caused the accident.
3. Defences: Proof of “non-repair” and causation establish a prima facie case of liability against a municipality. The municipality then has the onus of establishing that at least one of the three defences in s. 44(3) applies.
4. Contributory Negligence: A municipality that cannot establish any of the three defences in s. 44(3) will be found liable. The municipality can, however, show the plaintiff's driving caused or contributed to the plaintiff's injuries.

See *Fordham v. Dutton-Dunwich (Municipality)*, 2014 ONCA 891, 327 O.A.C. 302, at para. 26.

[30] The plaintiffs bear the onus to establish, on a balance of probabilities, that the roadway was in a state of non-repair at the time of the accident and that it caused their injuries: *Lloyd v. Bush*, 2020 ONSC 842, at para. 121; *Stamatopoulos v. The Regional Municipality of Durham*, 2019 ONSC 603, 85 M.P.L.R. (5th) 31, at para. 204, aff'd 2022 ONCA 179, 26 M.P.L.R. (6th) 1, leave to appeal refused, [2022] S.C.C.A. No. 123; and *Deering v. Scugog (Township)*, 2010 ONSC 5502,

77 C.C.L.T. (3d) 167, at para. 185, aff'd 2012 ONCA 386, 33 M.V.R. (6th) 1, leave to appeal refused, [2012] S.C.C.A. No. 351.

[31] There is no dispute that Dufferin Construction owed Joseph and Santa Valerio a duty of care. Nor is there any dispute that the City owed them a statutory duty under s. 44(1) of the *Municipal Act, 2001*. I will therefore focus on the other elements of the causes of action below.

B. Joseph and Santa Valerio have not established that the defendants breached the applicable standard of care

[32] The plaintiffs are required to establish that Dufferin Construction breached the standard of care in negligence and that the City breached the statutory standard of care under s. 44(1) of the *Municipal Act, 2001*.

[33] How is the standard of care established in personal injury cases involving road construction? Normally, it is done through expert evidence.

[34] Here, the plaintiffs did not tender any expert evidence on the standard of care and whether the defendants breached it. They say they do not need any in the circumstances of this case. They argue that the court should infer based on the circumstantial evidence that the water valve was unreasonably high. In this regard, they rely on *Fontaine v. British Columbia (Official Administrator)*, [1998] 1 S.C.R. 424.

[35] I disagree.

The standard of care

[36] I turn first to the standard of care in negligence. The Supreme Court of Canada has held that “the general rule is that the standard of care in negligence is that of the reasonable person in similar circumstances”: *Hill v. Hamilton-Wentworth Regional Police Services Board*, 2007 SCC 41, [2007] 3 S.C.R. 129, at para. 69. What is reasonable depends on the facts of each case. Relevant facts include “the likelihood of a known or foreseeable harm, the gravity of that harm, and the burden or cost which would be incurred to prevent the injury”, and “one may look to external indicators of reasonable conduct, such as custom, industry practice, and statutory or regulatory standards”: *Ryan v. Victoria (City)*, [1999] 1 S.C.R. 201, at para. 28. These facts are not to be treated as a mathematical formula, but as factors in the overall standard of care analysis.

[37] The standard of care expected of a road contractor is that of reasonable care that is proportional to the foreseeable risks. A breach of the standard of care will only be established if the contractor has failed to address risks that can reasonably be foreseen in the circumstances: see *Miles*, at para. 36 (under the *Occupiers' Liability Act*).

[38] The City's statutory standard of care under s. 44(1) of the *Municipal Act, 2001* is to keep the road “in such a reasonable state of repair that those requiring to use it may, exercising ordinary care, travel upon it in safety”: *Partridge v. Langenburg (Rural Municipality)* (1929), [1930] 1

D.L.R. 939 (Sask. C.A.), per Martin J.A., at p. 943, cited with approval in *Housen v. Nikolaisen*, 2002 SCC 33, [2002] 2 S.C.R. 235, at para. 38. See also *Miles*, at para. 31. When a road is traversable for ordinary drivers exercising reasonable care, it is in good repair and no cautionary or remedial measures are required.

[39] Neither common law negligence nor the *Municipal Act, 2001* requires a standard of perfection. The defendants are not required to act as insurers for all possible injuries. Rather, common law negligence and the *Municipal Act, 2001* are fault-based regimes. To succeed, the plaintiffs must establish that Dufferin Construction and the City breached the applicable standard of care.

Expert evidence was required

[40] The plaintiffs were required to lead expert evidence to establish the standard of care at common law and under s. 44(1) of the *Municipal Act, 2001*. This is not a case in which the court is able to find that the standard of care was breached without it. Expert evidence about the standard of care for road maintenance and the reasonably safe height of a water valve was vital to proving their case.

[41] Recall the purpose of expert evidence. It is to provide information that is outside the experience and knowledge of a judge or jury: *R. v. Abbey*, [1982] 2 S.C.R. 24, at p. 42. Expert evidence is needed when the subject-matter is such that “ordinary people are unlikely to form a correct judgment about it, if unassisted by persons with special knowledge”: *R. v. Mohan*, [1994] 2 S.C.R. 9, at p. 23 (internal citations omitted). See also *White Burgess Langille Inman v. Abbott and Haliburton Co.*, 2015 SCC 23, [2015] 2 S.C.R. 182, at para. 21.

[42] In my view, road maintenance is a technical occupation requiring professional experience and judgment. As such, the general rule applies that the content of the standard of a professional care will require expert evidence: see 495793 *Ontario Ltd. v. Barclay*, 2016 ONCA 656, 132 O.R. (3d) 241, at para. 53; *Meady v. Greyhound Canada Transportation Corp.*, 2015 ONCA 6, 329 O.A.C. 173, at paras. 34-35; *Bergen v. Guliker*, 2015 BCCA 283, 75 B.C.L.R. (5th) 351, at paras. 114-31; and *Camaso Estate v. Saanich (District)*, 2013 BCCA 6, at paras. 71-72, leave to appeal refused, [2013] S.C.C.A. No. 92.

[43] There are two exceptions to this general rule, but neither applies here.

[44] The first exception is for non-technical matters within the knowledge and experience of the ordinary person: *Barclay*, at para. 57; *Krawchuk v. Scherbak*, 2011 ONCA 352, 106 O.R. (3d) 598, at para. 133, leave to appeal refused, [2011] S.C.C.A. No. 319, citing *Zink v. Adrian*, 2005 BCCA 93, 37 B.C.L.R. (4th) 389, at para. 44. Although the ordinary person can be expected to encounter road maintenance in one’s daily commute, the milling and laying of asphalt around water valves, the reasonably safe height of water valves, and reasonable signage and marking is outside the ordinary person’s knowledge. The ordinary person is unlikely to form a correct judgment about the standard of care without the assistance of persons with special knowledge.

[45] The second exception is where the impugned conduct of the defendant is so egregious that it is obvious that their conduct has fallen below the standard of care, even without knowing precisely the parameters of that standard: *Barclay*, at para. 57; *Krawchuk*, at para. 135. Here, nothing about the defendant's conduct is egregious, nor did the defendants' conduct obviously fall below the standard of care. To the contrary.

[46] The plaintiffs argue that expert evidence regarding the standard of care about road maintenance is not required. They rely on *Miles* to support this argument.

[47] In *Miles*, the plaintiff was operating a motorcycle in the southbound lane of the road when she approached a zone where the defendant road maintenance company was applying new asphalt. The plaintiff was directed by a construction worker to wait for oncoming traffic, then to proceed in the northbound lane and then onto the southbound lane. The accident occurred when the plaintiff changed lanes over a lip of freshly applied asphalt and lost control of her motorcycle. The court held that the plaintiff proved on a balance of probabilities that the defendant county breached its duty under s. 44(1) of the *Municipal Act, 2001* to keep the roadway in a state of repair that was reasonable in the circumstances and that the defendant road maintenance company, as the occupier of the road at the time of the accident, breached its duty under s. 3(1) of the *Occupiers' Liability Act* to take such care as was reasonable in the circumstances to see that persons entering on the relevant section of the roadway would be reasonably safe.

[48] Although it does not appear that the trial judge in *Miles* heard expert evidence about the standard of care for road maintenance, he did hear expert evidence about the operation of a motorcycle and the effect of a motorcycle passing over a raised lip of newly laid asphalt. Importantly, the defence witnesses also acknowledged on cross-examination that an insufficiently hardened edge or lip of new asphalt would present an unusual, unstable or hazardous situation. It was the combination of this expert evidence and the defence witnesses' concessions, along with the physical evidence, which led the trial judge to find a breach of the standards of care under s. 44(1) of the *Municipal Act, 2001* and s. 3(1) of the *Occupiers' Liability Act*. Therefore, I do not accept that *Miles* articulates a broad rule dispensing with the need for expert evidence. Ultimately, it comes down to the specific case. Here, as discussed, expert evidence on the standard of care for road maintenance was necessary. I would have been greatly assisted by it.

[49] The plaintiffs led no accident reconstruction evidence, no expert evidence on road maintenance (including expert evidence about the reasonably safe height of water valves or ramping), and no expert evidence on road safety (including expert evidence about reasonable signage and marking of roadworks).

[50] This kind of expert evidence is routinely led in road accident cases: see e.g., *Lloyd; Stamatopoulos; Deering; Voisin v. County of Oxford*, 2022 ONSC 4912; *Wasylyk v. County of Simcoe*, 2022 ONSC 4458, aff'd 2023 ONCA 781; and *Mitton v. Ministry of Transportation*, 2024 ONSC 6608.

[51] Neither the claim against Dufferin Construction nor the claim against the City under s. 44(1) of the *Municipal Act, 2001* attracts strict liability. It is essential that the plaintiffs establish the standard of care through expert evidence, and that the defendants breached it. They have not done so.

In the alternative, the defendants satisfied the standard of care in negligence and under s. 44(1) of the *Municipal Act, 2001*

[52] If I am wrong and expert evidence is not required, I find that the defendants met the standard of care in negligence and under s. 44(1) of the *Municipal Act, 2001*.

[53] The plaintiffs argue that they have established a *prima facie* case of negligence that the defendants have not rebutted. They rely on *Fontaine*. They argue that the water valve, which the undercarriage of Mr. Valerio's minivan struck, was higher than the contractor's best practices. They argue that if the water valve was high enough to hit the undercarriage of Mr. Valerio's minivan, it must have been too high.

[54] In *Fontaine*, the Supreme Court of Canada held that the maxim *res ipsa loquitur*, or "the thing speaks for itself", no longer applies in Canada and should no longer be used as a separate component in negligence actions. Instead, the trier of fact should weigh the circumstantial evidence with any direct evidence to determine whether the plaintiff has established on a balance of probabilities a *prima facie* case of negligence against the defendant. Only if the plaintiff has done so must the defendant present evidence to negate the plaintiff's evidence or the plaintiff will necessarily succeed: at paras. 26-27.

[55] *Fontaine* instructs that I must consider whether there was direct evidence from which the cause of the accident could be determined, or, failing that, whether there was circumstantial evidence from which it could be inferred that the accident was caused by negligence attributable to the defendants: at para. 28.

[56] I disagree that the plaintiffs have established a *prima facie* case of negligence that the defendants have not rebutted. I come to this conclusion for two reasons. First, I find that the water valve, which the undercarriage of Mr. Valerio's minivan struck, was at a safe height and sufficiently marked. Second, there is another available inference as to the cause of the accident.

[57] I turn first to the water valve.

[58] There is no evidence that the water valve was over two to three inches above the road surface. The plaintiffs point to the lack of records from the defendants having measured the height of the water valve to argue that they did not check that its height would not catch the underside of vehicles. Yet, the absence of records is not evidence that the defendants did not check its height, nor is it evidence that the water valve was above two to three inches. It is simply an absence of records.

[59] Mr. Valerio estimated that the milled portion of the road dipped down from the un-milled portion of the road by about two to three inches. But Mr. Valerio did not measure the height of the valve, which the undercarriage of his minivan struck, from the milled portion of the road.

[60] Further, the plaintiffs adduced photographs that Mr. Valerio took of the intersection and the water valves the evening of the accident and the next day. In the photographs, the two valves appear roughly the same height, but the undercarriage of Mr. Valerio's car did not collide with the first valve. Nothing in the photographs suggest that a normal undercarriage should have difficulty clearing the valves. I acknowledge that angle, zoom, and lighting can affect one's perception of the height of objects in photographs. Even so, the photographs do not suggest to me that the water valves were unreasonably high.

[61] The best evidence regarding the height of the water valve, which the undercarriage of Mr. Valerio's minivan struck, is from Trevor Shadbolt. At the time of the accident, he was a project superintendent for Dufferin Construction. He had been with the company since 1995. He would supervise about 100 projects a year, most of them asphalt road paving. He left Dufferin Construction in 2019 to form his own company, but he still does some projects for Dufferin Construction as a subcontractor. By the time of the trial, he had 29 years of experience in road maintenance and construction.

[62] In August 2013, he attended daily the work site at Dundas Street and Clarke Road for between 10-15 minutes to one hour per visit. He met with the site foreman and coordinator.

[63] Mr. Shadbolt explained how the road repair was done on this section of the road. He testified that the water valves would first be lowered below grade to avoid damaging them before milling. The old surface asphalt would then be milled down by 60 millimeters. Next, the valves would be raised before the new asphalt was laid down. The valves would be raised 40-75 millimeters or two to three inches. There would be asphalt ramping leading up to each valve and the valves would be painted with fluorescent orange paint. This was done to protect vehicle tires and pedestrians against injury. Finally, the new asphalt would be laid down in layers. Before laying down the first layer of asphalt, the road would be measured to ensure it had a two percent slope from the centerline to the curb, so that water would be shed off the road. As the road is built, the crew would verify the centerline and measure the height using string lines, shims, digital levels, and tape measures. Finally, the valves would be set flush with the final layer of the new asphalt.

[64] Mr. Shadbolt visited the site both before and on the night of the accident. He saw nothing wrong with the height of the water valve, which the undercarriage of Mr. Valerio's minivan struck. Although he did not measure it, I accept that, given his considerable experience in road maintenance, he would have observed through visual inspection whether the water valve was too high.

[65] Mr. Shadbolt testified that, although a vehicle's tire or rim would occasionally be damaged from striking a raised valve, he never had an issue with a vehicle's undercarriage striking a valve in his 29 years of experience.

[66] On cross-examination, it was put to him that in August 2013 a vehicle had hit a manhole on roadworks elsewhere in the city and damaged the vehicle's oil pan. Mr. Shadbolt explained that it was his understanding, based on reports from the foreman on site, that the motorist was driving in an area that was closed, the work had not been completed, and the road had not been paved or ramped. In this discovery transcript, which was read-in by the plaintiffs, Mr. Shadbolt explained that this other collision was with a different kind of valve. It was not a water valve, but a utility valve, such as those used by Bell Canada or Hydro. Dufferin Construction was not allowed to raise or lower the utility valve.

[67] Mr. Shadbolt was cross-examined about another incident, again elsewhere, but had no knowledge of it.

[68] I am not persuaded that these other incidents diminished Mr. Shadbolt's credibility because they were significantly different than those arising in this case.

[69] Mr. Shadbolt confirmed through Dufferin Construction's records for the worksite that the water valves were marked with fluorescent orange paint and signage providing advance notification of construction. There were orange barrels around the perimeter of the construction zone. Together with the painted valves, he had no concerns about marking and signage. In his view, there was no need for more signage because there was no significant vertical drop in the lane, nothing sticking up high into the lane, and no equipment in the lane.

[70] Mr. Shadbolt testified that the ramping and painting of the ramping to the valve was standard procedure. He also testified that following the accident, the City put down cold mix asphalt to protect the valve against further damage.

[71] Ultimately, Mr. Shadbolt expressed the view that the roadwork around the valve was consistent with how it has been done by Dufferin Construction and by other contractors. He would not have done anything differently.

[72] On cross-examination, Mr. Shadbolt testified that 50 kilometers per hour was a safe speed, and he would not consider reducing the speed limit in the intersection.

[73] I accept Mr. Shadbolt's evidence, which was clear and coherent. He was a credible and reliable witness.

[74] The City representative, Paul Choma, was examined for discovery. He did not testify at trial. The plaintiffs read in portions of his discovery transcript. His evidence was that the water valves were marked with orange paint, on the side of the valve facing the direction of travel. This is generally required by the City and is industry standard.

[75] In sum, I find that the water valve was between two to three inches above the road surface and was properly ramped. I find that a height of two to three inches is not dangerous to ordinary drivers exercising reasonable care. I find that the valve was marked with fluorescent orange paint and was plainly visible to an ordinary driver exercising reasonable care. Finally, I find that it would

have been apparent that the intersection was under construction to ordinary drivers exercising reasonable care and that no further signage was reasonably required. All of these are proportional precautions against the foreseeable risks.

[76] Thus, I am satisfied that the defendants met the standard of care in negligence and under s. 44(1) of the *Municipal Act, 2001*.

[77] Second, there is available inference as to the cause of the accident other than any negligence on the part of the defendants: the accident could have been caused by the state of Mr. Valerio's vehicle and his speed.

[78] Mr. Valerio's minivan was about 15 years old at the time of the accident. He purchased it in 2010 for \$500. He maintained it mostly himself. He replaced the tie rod, and he had a new transmission and rear shock absorbers installed by others. But he did not replace the front shock absorbers. The minivan had seen heavy use. Mr. Valerio used it as a utility vehicle, and for hauling a boat and snowmobile. It was his primary vehicle.

[79] I am not persuaded that the minivan was sufficiently well-maintained to eliminate it as the sole cause of the accident. I have considerable concerns about the state of repair of Mr. Valerio's vehicle. These concerns were not allayed given the absence of expert evidence about Mr. Valerio's minivan and lack of accident reconstruction evidence.

[80] The ordinary driver exercising reasonable care would drive a well-maintained vehicle. In my view, neither Dufferin Construction nor the City is required to take steps to protect against poorly-maintained vehicles. This is not a situation in which there are multiple causes for the accident and liability ought to be apportioned. Rather, this is a situation in which the plaintiffs have not proven on the evidence that the defendants bear any liability.

[81] Moreover, I am not persuaded that Mr. Valerio was only driving at 40-50 kilometers per hour. This was his belief, but he admitted to not having checked his speedometer. It is therefore possible he was going faster. This is an issue on which I would have been assisted by an accident reconstruction expert. It would have assisted me to have expert evidence about how Mr. Valerio's minivan would have behaved, given its age and state of repair, as it traveled through the intersection, missed the first valve and struck the second valve.

[82] Therefore, like in *Fontaine*, the defendants have provided "alternative explanations of how the accident may have occurred without negligence" on their part: at para. 33.

[83] Given my findings, this is not a case in which the accident affords a basis to infer, as a matter of ordinary experience, that the defendants were negligent. And to be clear, this is not a question of the plaintiff's contributory negligence. Rather, I am not satisfied by the direct and circumstantial evidence that the defendants were negligent at all.

[84] In the event that I am wrong, I will consider the other elements of the plaintiffs' claims.

C. Joseph and Santa Valerio established that they sustained injuries that were caused by the accident

[85] The test for causation is the “but for” test. A plaintiff must show, on a balance of probabilities, that “but for” the defendant’s negligent act, the injury would not have occurred. Inherent in the “but for” analysis is the requirement that the defendant’s negligence was necessary to cause the plaintiff’s injury. This is a factual inquiry. The “but for” test for causation must be applied in a “robust common sense fashion”: *Clements v. Clements*, 2012 SCC 32, [2012] 2 S.C.R. 181, at paras. 8-9; *Resurfice Corp. v. Hanke*, 2007 SCC 7, [2007] 1 S.C.R. 333, at para. 21.

[86] I am satisfied that Joseph Valerio suffered injuries from the accident.¹ He sustained injuries as a result of his minivan striking the water valve. But, as I will discuss in the damages section, the severity of the injuries suffered by Joseph Valerio were more limited than what was claimed.

Joseph Valerio

[87] Joseph Valerio contends that he suffered the following injuries as a result of the accident:

1. Cervical spine sprain/strain;
2. Left shoulder sprain/strain;
3. Left wrist sprain/strain;
4. Chronic myofascial pain of the above areas; and
5. Temporomandibular joint (TMJ) disorder and pain.

[88] He also contends that he injured his chest and knee in the accident.

[89] Mr. Valerio’s evidence was that the airbag hit him in the face and chest. He also testified that it blew his hand off the steering wheel immediately after the accident.

(a) Dr. Khan’s report

[90] The plaintiffs filed an expert report, addendum report, and further addendum report from Dr. Mohammed Abdul Wahab Khan, a physiatrist. He is an expert in physical medicine and rehabilitation. He was qualified to provide opinion evidence on the impact, if any, the accident had

¹ I deliberately use the word “accident” because I have found that the defendants were neither negligent nor in breach of the standard of care under the *Municipal Act, 2001*.

on Mr. Valerio in the area of physical medicine. The defendants elected not to cross-examine Dr. Khan.

[91] In preparing his reports, Dr. Khan reviewed Mr. Valerio's medical records, and he conducted an interview and assessment of Mr. Valerio.

[92] Dr. Khan's conclusions may be briefly summarized. He opined that Mr. Valerio presented with the following accident-related injuries: cervical spine sprain/strain; left shoulder sprain/strain; left wrist sprain/strain; and chronic myofascial pain of these areas. He further opined that, given the time that has passed since the accident without complete improvement, the prognosis for a recovery from his physical pain symptoms to a pre-accident status is poor. The pain symptoms that Mr. Valerio currently experiences will likely persist.

[93] Dr. Khan opined that Mr. Valerio experienced an impairment of chronic pain in his left wrist. He opined that the accident has significantly impaired Mr. Valerio's function in several important domains, including housekeeping, recreation, and employment.

[94] As for the cause of Mr. Valerio's injuries, Dr. Khan opined that there is a temporal relationship between the onset of Mr. Valerio's physical pain symptoms and associated functional limitations and the date of the accident on August 7, 2013. He concluded that it is more likely than not that Mr. Valerio's current physical symptoms and associated functional limitations are directly related to the accident.

(b) Credibility and reliability assessment

[95] I find that Mr. Valerio was not a credible or reliable witness as to the nature and extent of his injuries.

[96] In terms of his credibility, I find that he exaggerated the degree and duration of his pain and symptoms. He convinced himself that his symptoms were a result of the accident and were more serious and for a longer duration than his contemporaneous reports to his family doctor, dentist, and physiotherapist.

[97] In this regard, Mr. Valerio grossly exaggerated or misrepresented his symptoms for the purpose of his assessment by Dr. Khan. On cross-examination, he resiled from much of the information he had provided to Dr. Khan for the latter's assessment. Dr. Khan's opinion is so tainted by the misleading information provided by Mr. Valerio that it renders his opinion unreliable. Consequently, I am unable to place any weight on Dr. Khan's opinion evidence.

[98] I also find that Mr. Valerio was not a reliable witness. His evidence regarding the nature and duration of his injuries was contradicted by the contemporaneous evidence of his health records. When confronted on cross-examination with the contemporaneous medical records, he often stated that he did not recall. It was as if many of these appointments were happening to someone else.

[99] When repeatedly confronted by clinical notes from his physician that made no ongoing mention of complaints related to his alleged injuries, Mr. Valerio asserted that he would not complain about ongoing issues and would only raise new issues at his appointments. I reject this explanation. It is not credible. Mr. Valerio sought treatment for other ongoing ailments unrelated to those alleged to have resulted from the accident, such as sinusitis and a cough, when it interfered with the quality of his life. Moreover, Mr. Valerio's family doctor, Dr. Bill McKeough, testified that he did not have a "one-complaint rule" for patient appointments. He allowed patients to raise whatever issue was bothering them. Ms. Abell also testified that, by 2014, if Mr. Valerio had any medical issues still lingering from the accident, she would have told him to go see Dr. McKeough.

[100] For these reasons, I reject Mr. Valerio's evidence that he would not raise ongoing issues at his medical appointments. Rather, I find that he did not raise issues with his family doctor which were not bothering him.

(c) Other evidence of causation

[101] The plaintiffs sought to lead evidence of causation through Mr. Valerio's treating health practitioners as participant experts. The defendants objected to the plaintiffs adducing the treating health practitioners' opinion on causation. To be clear, there was no objection to the treating health practitioners testifying as to their diagnosis, treatment, and prognosis made during their treatment of Mr. Valerio, provided their opinion was within their skill, knowledge, training and experience. Rather, the real dispute was over the scope of this opinion evidence: could they testify as to the cause of Joseph and Santa Valerio's injuries?

[102] I made two rulings midtrial for which oral reasons were delivered. First, consistent with *Westerhof v. Gee Estate*, 2015 ONCA 206, 124 O.R. (3d) 721, I directed a *voir dire* of Dr. McKeough's evidence in this regard.

[103] Second, after the *voir dire*, I concluded that a treating health practitioner's opinion, formed for the purpose of diagnosis and treatment, about whether a complaint is consistent with a physical injury *versus* some other cause, is admissible evidence. For example, a treating health practitioner's opinion as to whether the complaint is consistent with a physical injury, *versus* one that is consistent with a neurological or psychosomatic explanation, is admissible.

[104] But I held that opinions about whether the complaints Mr. Valerio presented with were caused by the accident that is the subject matter of the litigation were not formed by the treating medical practitioners for the purpose of their diagnosis and treatment. Opinion evidence by treating medical practitioners on whether Mr. Valerio's complaints were caused by the accident must comply with r. 53.03: *Westerhof*; *Imeson v. Maryvale (Maryvale Adolescent and Family Services)*, 2018 ONCA 888, 143 O.R. (3d) 241.

[105] Finally, I held that given that the plaintiffs did not comply with r. 53.03 regarding whether his injuries were caused by the accident, the treating medical practitioners' evidence in this regard was not admissible.

[106] I applied this ruling more generally to the treating health practitioners who testified at trial.

(d) Injury to left hand and wrist

[107] Mr. Valerio testified that his left hand was injured in the accident, and it was swollen afterwards. As discussed, his hand was blown off the steering wheel when the airbag deployed. There is a contemporaneous photograph of his left hand showing dirt or grit from the deployment of the airbag. It is not possible to determine whether his hand was swollen based on the photograph.

[108] Mr. Valerio also testified that he experienced left wrist pain as a result of the accident.

[109] When I consider Mr. Valerio's medical and physiotherapy records, I am persuaded that he suffered a wrist injury as a result of the accident. The onset of the left wrist pain follows closely with the accident, such that I am satisfied that the accident was the cause of the injury and pain.

(e) Injury to jaw (TMJ disorder and pain)

[110] Based on Mr. Valerio's evidence and the contemporaneous records of his physician, dentist, and physiotherapist, I am persuaded that Mr. Valerio suffered a TMJ injury as a result of the accident. Given the onset of the pain to his jaw closely following the accident, I am persuaded that the airbag deploying against his face caused a TMJ injury.

[111] Mr. Valerio testified that he experienced facial pain and sensitivity to cold following the accident. I am not persuaded that this was caused by the accident. There is simply insufficient evidence to support this conclusion.

(f) Cervical spine sprain/strain

[112] The only time he was diagnosed by Dr. McKeough with any neck pain was shortly after the accident on August 27, 2013. Dr. McKeough diagnosed a "WAD I" injury, that is, neck pain with stiffness or tenderness only. There were no physical signs of injury. He prescribed heat or ice, and Advil. At most, this was a very mild or superficial injury.

[113] The evidence does not support the conclusion that Mr. Valerio suffered anything more significant to his neck due to the accident. I have come to this conclusion based on his contemporaneous medical and physiotherapy records, and his evidence at trial.

(g) Left shoulder sprain/strain

[114] Overall, the evidence does not support the conclusion that Mr. Valerio suffered a left shoulder sprain or strain because of the accident. Although there is a notation in his August 27, 2013 medical records that he complained of pain in his hands right up into shoulders, there is no support for left shoulder sprain or strain in his physiotherapy records or in his evidence at trial.

(h) Chest pain

[115] Mr. Valerio testified that he experienced chest pain, which he attributed to the accident. I find that there was a superficial injury to his pectoral muscles caused by the accident, which resolved within two weeks. The injury was trivial and transitory.

(i) Knee pain

[116] Although Mr. Valerio referenced knee pain following the accident, the plaintiffs did not pursue the allegation in closing argument that the accident caused an injury to his knee. In any event, I find that the evidence does not support such a claim.

Santa Valerio

[117] As discussed, Santa Valerio did not testify at trial. The plaintiffs tendered her medical records for the truth of their contents. The defendants objected given that Santa Valerio did not testify and that the plaintiffs elected not to bring a r. 31.11 motion to read in her discovery transcript.

[118] For reasons given at trial on November 25, 2024, I admitted Dr. McKeough's notes² for the truth of their contents, insofar as they related to his observations, assessment, and treatment plan of Santa Valerio. But I ruled that those parts of the medical records that recorded Santa Valerio's statements were inadmissible as hearsay. Consistent with *R. v. Lavallee*, [1990] 1 S.C.R. 852, at p. 893, her statements were only admissible to show the information on which Dr. McKeough's medical opinion was based, not as evidence going to the existence of the facts on which the opinion is based. Section 51 of the *Evidence Act*, R.S.O. 1990, c. E.23 does not relieve the plaintiffs of having to provide a foundation for Dr. McKeough's opinions. I further held that I would consider at the close of evidence whether there is sufficient admissible evidence, other than Santa Valerio's statements, to support the facts upon which Dr. McKeough's opinions are based.

[119] Joseph Valerio testified that about a year before the accident, his mother had hurt her shoulder as a result of a mugging. According to her medical records, the shoulder injury as a result of the mugging occurred in August 2010. Mr. Valerio testified that she also had broken her wrist in 2012. She used a heating pad for her shoulder and wrist, and treated the pain with Tylenol or Advil, as well as a topical cream. Before the accident, Mr. Valerio witnessed his mother using the heating pad regularly. He estimated that she did so four or five times a week.

[120] Mr. Valerio testified that, as a result of the accident, Santa Valerio had difficulty hearing him and that she was very shaken up. He testified that her hearing improved but not to pre-accident levels. Mr. Valerio also testified that following the accident his mother regularly put a heating pad

² This includes the notes of the treating physician on her initial visit to Dr. McKeough's clinic.

and topical cream on her left wrist, right hand, right arm, right shoulder, left shoulder, and neck. He witnessed her doing so four to five times a week and sometimes more often.

[121] Finally, Mr. Valerio attributes more significant behavioural changes in his mother to the accident. He testified that his mother became less active. She did not prepare elaborate Sunday dinners, as she once did, nor did she keep the house as clean as she had. Finally, she was not as active in gardening.

[122] Having considered all the evidence, I am satisfied that there is sufficient admissible evidence to provide a foundation for admitting Dr. McKeough's medical opinion in his clinical notes that Santa Valerio suffered a mild soft tissue injury. But I find that there is insufficient evidence to support a finding of causation between the accident and the alleged tinnitus or hearing loss. On this record, the tinnitus or hearing loss is subjective in nature and a finding of causation is confounded by pre-existing tinnitus. I am therefore unable to make causal findings in this regard.

[123] Santa Valerio's medical records show previous complaints of tinnitus, neck and shoulder pain, as well as wrist pain. The pre-existing neck and shoulder pain arise from her mugging. She had complaints relating to her left shoulder, which was investigated by X-ray. She had mild-degenerative changes in her acromioclavicular joint.

[124] The medical note of her visit to her family physician August 8, 2013 queries acute hearing loss or tinnitus, which was, by the day after the accident, improving. It queried a mild whiplash in the C-7 region of her spine, which is in the lower neck close to the shoulder.

[125] Dr. McKeough's clinical note of August 27, 2013, which follows up on Santa Valerio's initial visit following the accident, records that Santa Valerio's hearing was back to normal but that she continued having pain in her neck and jaw. By November 6, 2013, Dr. McKeough's clinical notes record that Santa Valerio reported pain in her right temple and TMJ. It is not clear from the evidence whether the November 2013 issues relate to the accident.

[126] Proof of the more extensive injuries and general damages alleged would have required Santa Valerio to provide an evidentiary foundation, either through her testimony at trial or by way of a discovery transcript, if admitted under r. 31.11. Mr. Valerio's evidence of his mother's pain is not an adequate or reliable substitute.

[127] Mr. Valerio and Ms. Abell's generalised observations about changes in Santa Valerio's activities following the accident and her treatment of her pain are not sufficiently reliable to establish a causal link between these complaints and the accident. Santa Valerio was 82 at the time of the accident and had pre-existing neck and shoulder pain. Her decline in physical activity around the house, including cooking and gardening, is consistent with her advanced age.

[128] My adverse findings regarding Mr. Valerio's credibility and reliability extend to his description of Santa Valerio's injuries. For example, his evidence regarding Santa Valerio's hearing appears to be contradicted by Dr. McKeough's August 27, 2013 clinical note which states that Santa Valerio reported that her hearing had returned to normal.

[129] Moreover, there is no expert evidence as to causation with respect to Santa Valerio's more extensive injuries and decline.

[130] Thus, there is insufficient admissible evidence to establish a causal link between the accident and the more extensive claims of pain, suffering and loss of enjoyment alleged by Santa Valerio.

D. Damages

Joseph Valerio's damages claim

[131] There are serious deficiencies to Mr. Valerio's damages claim.

[132] At the close of trial, Mr. Valerio advanced a claim for general damages, out-of-pocket expenses, and loss of income.

(a) General damages

(i) *Injury to jaw*

[133] Mr. Valerio testified in-chief that following the accident he had jaw pain. He testified that he would have pain at varying levels of intensity after the first year of the accident. Once or twice a week it might be very painful. It would be more painful after a day of teaching, when he had to speak a lot. He would take Advil and go to a quiet place. The pain would last three to four hours. He testified that he still experiences snapping and cracking of the tendon in his jaw. He no longer experiences the pain with the same intensity. He says significant pain now occurs every two to three weeks.

[134] The onset of his jaw pain is supported by the records of his physiotherapist, dentist, and family doctor. But Mr. Valerio exaggerated the gravity and duration of the injury.

[135] Mr. Valerio's physiotherapist, Dr. Jim Millard, testified at trial. On October 7, 2013, Dr. Millard assessed Mr. Valerio with jaw pain and bilateral tenderness to his TMJ. He did not record any restriction in the movement of Mr. Valerio's jaw, no deviation, and no altered movement. Dr. Millard's January 6, 2016 progress note records that Mr. Valerio's jaw was tender to palpation and diagnosed "[p]ermanent problems/dysfunction in the jaw (TMJ) bilaterally". Dr. Millard prescribed home exercises to maintain mobility and control the pain. There is no change to his assessment in subsequent progress notes in April and October 2016. Subsequent physiotherapy focused on Mr. Valerio's wrist.

[136] Mr. Valerio's dentist, Dr. Mark Davenport, also testified. The month after the accident, Mr. Valerio saw Dr. Davenport for a cleaning and his chief complaint was that his jaw was sore. Dr. Davenport assessed that Mr. Valerio had pain in clenching his jaw, but that there was no mobility issue with his jaw and there was no TMJ issue with the jaw opening or closing. Dr. Davenport prescribed a nightguard, which was delivered at Mr. Valerio's appointment in December 2013

when he came for a cleaning. By April 2014, it is clear that Mr. Valerio was not wearing his nightguard regularly. Dr. Davenport adjusted the nightguard in May 2014 and encouraged him to wear it regularly. Again, in June 2015, his dental records show that Mr. Valerio reported not wearing the mouthguard regularly. His records report a “slight pop/click on right” and “[p]rominent click/pop on left” of the TMJ during the oral exam, but this did not cause him pain. By Mr. Valerio’s visit in October 2015, the popping and clicking had not progressed. Dr. Davenport adjusted his nightguard.

[137] By November 2015, Mr. Valerio’s TMJ pain was persisting. Dr. Davenport referred him to Dr. Douglas Awde, who specializes in TMJ dysfunction. Dr. Awde made a more elaborate mouthguard for Mr. Valerio to wear at night.

[138] The assessment by an attending dentist, Dr. Erin Gorman, in May 2016 is that Mr. Valerio’s bite was better since Dr. Awde made the mouthguard for Mr. Valerio. The improvement of Mr. Valerio’s TMJ issue was confirmed in an October 2016 note by a dental hygienist. After October 2016, Mr. Valerio did not continue to complain about his TMJ pain to Dr. Davenport.

[139] On August 8, 2013, Mr. Valerio saw a physician practicing at his family doctor’s office about the accident. He returned on August 27, 2013 for a follow up. At that appointment, Dr. McKeough assessed his left TMJ to be tender. He did not diagnose a TMJ issue at this point. On December 17, 2023, Mr. Valerio saw his family physician for a follow up appointment regarding the accident. While Mr. Valerio complained that he still had pain and fatigue in his TMJ, Dr. McKeough assessed him as having full range of motion in his jaw. On May 20, 2014, Dr. McKeough assessed him as having bilateral tenderness in his TMJ. On May 27, 2016, Dr. McKeough noted that Dr. Awde had prescribed Elavil for Mr. Valerio’s jaw pain, which had helped. After this visit, Mr. Valerio’s medical records do not support continued complaints regarding his TMJ. This is consistent with Dr. Davenport’s records.

[140] In November 2019, Mr. Valerio saw Dr. McKeough twice for an upper respiratory infection, which led to right-sided facial pain and congestion. On November 26, 2019, Dr. McKeough assessed his TMJ as normal. This is consistent with Mr. Valerio’s accident-related TMJ having resolved some time earlier.

[141] Based on the weight of the objective records, I find that Mr. Valerio suffered varying levels of TMJ pain after the accident. Overall, I would characterize the pain as moderate and that the TMJ pain caused by the accident resolved by the end of 2016. I am not persuaded that Mr. Valerio remains in TMJ pain because of the accident. I find that his evidence in this regard is exaggerated and unsupported by the objective evidence.

(ii) *Injury to hand and wrist*

[142] Mr. Valerio testified in chief that the swelling went down after a month. There was pain associated with the swelling. He said the hand pain resolved within six to 12 months. I accept this evidence.

[143] Mr. Valerio also testified that he experienced left wrist pain as a result of the accident. He testified that certain motions would cause a shock of pain, like an electrical shock. He said it was acute in the first year after the accident. In terms of frequency, he estimated the shock pain would be triggered a couple of times a week. He said he experienced it randomly when performing tasks like opening a door or rotating his wrist. In addition, he described a light ache or throbbing pain in his wrist after extended work using his hand.

[144] Mr. Valerio testified that the shock pain in his wrist was reduced in the last year or two before trial. He said he still experiences it occasionally. He said he still gets a slight ache on a semi-regular basis, which he quantified as three to four times a week, but he was not sure.

[145] On cross-examination, it was put to Mr. Valerio that he had re-injured his left wrist when he slipped on a mat in October 2015. He could not recall. Dr. McKeough examined him on October 29, 2015. His clinical notes record that Mr. Valerio reported that he slipped on a mat and fell on a hard floor. Dr. McKeough's notes record that Mr. Valerio was not sure whether he fell on an outstretched hand, but he reported that his left wrist ached, along with his lower back and right buttock. I am unable to conclude whether this was a new injury to his left wrist, an exacerbation of his existing injury, or no new injury at all.

[146] When I consider Mr. Valerio's medical and physiotherapy records, I am not persuaded that this injury persisted after 2016. His reported symptoms after 2016 do not support continued left wrist injury and pain caused by the accident. His symptoms evolved – eventually with pain in his hands that sometimes radiates into his shoulders – and are more consistent with his eventual diagnosis of psoriatic arthritis.

(iii) *Chest pain*

[147] Mr. Valerio testified that right after and for the year following the accident, he found it difficult to take a full breath. He also experienced tenderness in his pectoral muscles for a couple of weeks after the accident. This tenderness subsided within a couple of weeks of the accident.

[148] I find that Mr. Valerio exaggerated his difficulty taking a deep breath. Because this injury is not consistent with his contemporaneous medical records – he makes no mention of difficulty taking a breath – I find that he has not established chest pain leading to difficulty taking a breath for up to a year after the accident.

(iv) *Cervical spine sprain/strain*

[149] As discussed, his neck injury was very mild and superficial. It resolved quickly after the accident.

(v) *Assessment of general damages*

[150] I find that Mr. Valerio significantly exaggerated how his injuries impacted his enjoyment of life and activities. His account, and that of Ms. Abell, was inconsistent with the

contemporaneous medical records of his family physician. Moreover, he continued to work full time, including over the summer, and enjoyed modified recreational activities.

[151] The plaintiffs and defendants advance vastly different ranges for Mr. Valerio's general damages claim. The plaintiffs argue that his general damages are in the \$85,000 to \$130,000 range. They rely on *Tennant v. Fariba*, 2013 ONSC 1676; *Oberholtzer v. Tocher*, 2018 BCSC 1089; and *Anthonipillai v. Lacelle*, 2021 BCSC 1723.

[152] By contrast, the defendants argue that Mr. Valerio's general damages are in the \$2,000 to \$10,000 range. They rely on *Elmardy v. Toronto Police Services Board*, 2015 ONSC 2952, 126 O.R. (3d) 130; *Elmardy v. Toronto Police Services Board*, 2017 ONSC 2074, 136 O.R. (3d) 483; *Lawrence v. Sugar Daddys*, 2017 ONSC 3741; *Johnston v. Nichilo*, 2022 CanLII 101413 (Ont. S.C.); *Diallo v. Benson*, 2006 CanLII 529 (Ont. S.C.); *Elkind v. Roy Foss Motors Ltd.*, [2003] O.J. No. 5760 (S.C.); *Gavadzyn v. Toronto (City)*, [2004] O.J. No. 3190 (S.C.); and *Nyilas v. Lamb*, 2003 CanLII 5861 (Ont. S.C.).

[153] The cases the defendants rely on are inapt. The injuries sustained in the authorities relied on by the defendants do not sufficiently mirror the duration of the injuries to Mr. Valerio's TMJ and left wrist.

[154] The most similar case advanced by the parties is *Tennant*, which assessed \$65,000 in general damages (indexed at \$86,825 in 2025), but overall, I find that Mr. Valerio's general damages were less serious than those of the plaintiff in *Tennant*. In that case, the plaintiff sustained physical injuries to his right shoulder, right arm, right hand, low back and left knee. The plaintiff continued to suffer pain and stiffness, lack of strength and sensation in respect of those parts of his body. Six years after the accident, the plaintiff still suffered from depression for which he took medication. The plaintiff continued to experience a lack of energy and feelings of hopelessness, a lack of motivation and drive at times, and his work, social, and recreational life were affected by his physical and psychological injuries.

[155] Ultimately, I would have assessed Mr. Valerio's general damages as \$60,000.

(b) Out-of-pocket expenses

[156] Mr. Valerio seeks \$485.85 in out-of-pocket expenses for his partial payment for the mouthguard to treat TMJ made by Dr. Awde.

[157] The defendants argue, among other things, that did not properly use his nightguard, despite instructions by Dr. Davenport. The defendants argue that a mouthguard he does not use is not a reasonable out-of-pocket expense.

[158] Although Mr. Valerio may have inconsistently used the nightguard, I am not persuaded that he completely failed to use it. I am persuaded that he made reasonable efforts to use it, and that the \$485.85 claimed would have been a reasonable out-of-pocket expense.

[159] I would therefore have awarded \$485.85 in out-of-pocket expenses to Mr. Valerio.

(c) Income loss

[160] As discussed, Mr. Valerio testified that it has his and Ms. Abell's plan for him to finish the renovations on the schoolhouse so that they could retire there. At trial, his evidence was that he intended to finish the renovations and move in at the end of the summer of 2017. The defendants objected to this, arguing that such evidence was inadmissible at trial because his discovery evidence was that there was no fixed date to complete the work, and that the plaintiffs had not updated his evidence prior to trial. I ruled that Mr. Valerio's trial evidence was admissible but that the inconsistency may affect the weight of his evidence. I find that the inconsistency undermines Mr. Valerio's credibility on this point.

[161] Mr. Valerio testified that his plan was to move into the schoolhouse and hold onto the condominium for a while and potentially sell it if the market was strong. He testified that they would hold onto the condominium because Mr. Valerio did not think Ms. Abell would be willing to sell the condominium until she tried living at the schoolhouse. His preference would be to rent it out for a long time, provided they had good tenants. He would have been happy to rent out the condominium for five years.

[162] Ms. Abell testified that they planned to move into the schoolhouse once it was complete (This evidence also attracted an objection under r. 31.09. I ruled the evidence admissible.). She testified that they intended to rent or sell the condominium, but they had not decided which to do before the accident. They would possibly travel or live in a warmer climate in the winter months, where they would either rent or purchase a property. They considered Arizona.

[163] Ms. Abell's evidence regarding the timing of their move to the schoolhouse was inconsistent. She first testified that Mr. Valerio had no firm plans, and that, for her part, they would move shortly after she retired in 2020 or 2021. At that point she would have her 35 years of service and could retire. As her lawyer returned to this point in examination-in-chief, Ms. Abell testified that they anticipated moving into the schoolhouse in 2017. I find her earlier answer to be more candid and consistent with her retirement plans.

[164] Mr. Valerio did not lose any income from his employment because of the accident. This is uncontested. In fact, Mr. Valerio not only continued to work full time during the school year, he also worked over the summers following the accident. His loss of income claim is a novel one. He says he ought to be compensated for the loss of rental income that he and Ms. Abell would have obtained from the rental of their condo had he finished the schoolhouse and had they moved into it in 2017. He also claims for the loss of the proceeds they could have realized from the sale of the condo.

[165] These claims are not recoverable by Mr. Valerio as lost income.

[166] First, Mr. Valerio does not own the condo. It is owned solely by Ms. Abell. He personally would not have derived an income from rent or been entitled to the proceeds of the sale of the condo, which would have been solely attributable to Ms. Abell.

[167] Mr. Valerio cannot therefore recover lost rent or the hoped-for proceeds of sale on a property he does not own as his “income loss”. Ms. Abell does not advance an independent claim for the loss of rental income or loss in value of a capital asset.

[168] Second, neither Mr. Valerio nor Ms. Abell have suffered any loss in respect of the condo as a capital asset. Ms. Abell still owns the condo. Far from the condo having diminished in value since 2017, it increased in value from \$180,000 on January 1, 2017 to \$500,000 on January 1, 2022. This is a net increase in value of \$320,000 – or a 277 percent increase – in five years. Had Ms. Abell sold her condo within a couple of years of 2017, the value of her condo would not have increased to this degree.

[169] Even if I were wrong, and the lost rent is recoverable by Mr. Valerio, the loss is less than Mr. Valerio asserts.

[170] Unlike past events, hypothetical events – such as whether Mr. Valerio and Ms. Abell would have moved into the schoolhouse and rented or sold Ms. Abell’s condominium – need not be proven on the balance of probabilities. Instead, they must be “given weight according to their relative likelihood”: *Athey v. Leonati*, [1996] 3 S.C.R. 458, at para. 27; *MacLeod v. Marshall*, 2019 ONCA 842, 148 O.R. (3d) 727, at paras. 17-18; and *West v. Knowles*, 2021 ONCA 296, at para. 72. The standard of proof of hypothetical events is a real and substantial possibility: *West*, at para. 74, citing *Gao v. Dietrich*, 2018 BCCA 372, at para. 34.

[171] On the evidence, I find that while Mr. Valerio and Ms. Abell had an intention to live part of the time at the schoolhouse, the timing was uncertain and was not before Ms. Abell’s planned retirement in 2020 or 2021. I reject that they had a common plan to do so at the end of the summer of 2017. I thus find that they would not have moved out of Ms. Abell’s condominium and into the schoolhouse until 2020.

[172] The plan was also contingent in that it depended on whether Ms. Abell enjoyed living in the country. Mr. Valerio candidly acknowledged that Ms. Abell would not wish to sell the condominium until she tried out living at the schoolhouse. I infer from this that she had doubts.

[173] Mr. Valerio and Ms. Abell also disagreed about whether to sell or rent out the condominium once they had moved to the schoolhouse. On Mr. Valerio’s version, he preferred renting out the condominium. Ms. Abell leaned towards selling the condominium. They had not resolved this key issue before the accident.

[174] While I am satisfied that the plan to move to the schoolhouse was a real possibility, I find that the percentage chance that they would have moved out of the condominium and rented it out to be 75 percent in the first year and 50 percent in the second year.

[175] The plaintiffs called a real estate appraiser, Sam Van Houtte. He was qualified as an expert about market value and market rent value of real property. Given my conclusion that Ms. Abell's condominium cannot form the basis of an income loss claim by Mr. Valerio, I will not analyze Mr. Van Houtte's opinion in depth.

[176] In Mr. Van Houtte's analysis, Ms. Abell's condominium could have been rented for \$1,750 per month in 2020 and \$1,800 per month in 2021. I am persuaded by Mr. Van Houtte's methodology in arriving at the retrospective monthly rent. That said, his methodology provides gross monthly rental income. Mr. Van Houtte did not consider contingencies for vacancy periods and collection loss. Nor did he deduct expenses to arrive at a net rental income. I have no evidence before me of expenses and other contingencies to properly assess net rental income.

[177] In sum, I would not have assessed more than \$26,550 in lost gross rental income for 2020 and 2021. And, I would have applied deductions for contingencies and expenses to determine net rental income.

Santa Valerio's claim for general damages

[178] I turn first to Santa Valerio. Her claim is for general damages. She seeks between \$5,000 and \$27,000. Her position is that her general damages do not extend past her dementia diagnosis.

[179] The plaintiffs rely on *Stevens (Litigation Guardian of) v. Forney*, [1993] O.J. No. 759 (Gen. Div.) to argue that I can assess Santa Valerio's general damages claim without her evidence. In that case, a child plaintiff was unable to testify because of their young age and disability. There, the court relied on the testimony and reports of treating and independent medical experts to award damages.

[180] The defendants argue that Santa Valerio has not discharged her obligation to prove her general damages claim because she did not testify and Mr. Valerio, as her litigation guardian, elected not to bring a r. 31.11 motion.

[181] I am satisfied that I can assess limited general damages without Santa Valerio's evidence based on Dr. McKeough's clinical notes relating to her soft tissue injury. She was diagnosed with mild whiplash and treated with over-the-counter medication.

[182] But, as discussed, Mr. Valerio and Ms. Abell's generalised observations about a decline in Santa Valerio's activities following the accident and the treatment of her shoulder pain are not sufficiently reliable to find causation or assess general damages in this regard.

[183] This was tacitly acknowledged by the plaintiffs. By closing submissions, Santa Valerio's general damages claim was limited to her soft tissue injury.

[184] On this basis, I would have assessed Santa Valerio's general damages at \$5,000.

Ms. Abell's Family Law Act claim

[185] Ms. Abell advances a *Family Law Act* claim for loss of care, guidance, and companionship. She claims damages in the range of \$5,000 to \$10,000. She relies on *El-Chakar v. Johnston* (1998), 59 O.T.C. 1 (Gen. Div.) and *Wood v. Brown* (1998), 86 O.T.C. 22 (Gen. Div.). In my view, the injuries sustained by Mr. Valerio as a result of the accident and the impact on Ms. Abell is more limited than in either of those cases, particularly *Wood*.

[186] She testified that before the accident, she and Mr. Valerio were very active. They would snowmobile, hike, cycle, walk, and swim. They were also active boaters. After the accident, their activities together changed. Mr. Valerio was not as active. He was more tired. His difficulty sleeping would disturb her sleep. Mr. Valerio was irritable and cranky. This affected their relationship. It put a strain on them because they were not as active, and they did not spend as much time with friends.

[187] But there were no periods of separation after the accident. They remained together and plan on remaining together. Ms. Abell testified that they still love each other.

[188] Following the accident, Mr. Valerio did less of the household tasks between August 2013 and July 2021. Ms. Abell took on most of them. Since then, he has improved and helps more often. That said, she testified that he has not returned to his pre-accident duties around the house.

[189] I am satisfied that Mr. Valerio and Ms. Abell are spouses within the meaning of the *Family Law Act*, and that they cohabit. Ms. Abell – but not Mr. Valerio – was cross-examined on the fact that Mr. Valerio's tax returns (and a number of other employment and government documents) list the schoolhouse as his residence and state his status as single. Ms. Abell had no knowledge of this. In any event, I find both of their evidence persuasive that they have been in a relationship for 22 or 23 years and have cohabited at Ms. Abell's condo since 2002 or 2003.

[190] I am also persuaded that Ms. Abell suffered a limited loss of care and companionship from Mr. Valerio as a result of the accident. Following the accident, Mr. Valerio was less able to help with household chores, he became irritable, and the couple's leisure activities were initially impacted. This affected their relationship. Although I am not persuaded that these issues persisted as long as Mr. Valerio and Ms. Abell maintained, I am satisfied that they did have an impact on Ms. Abell and resolved by the end of 2016.

[191] Therefore, I would have awarded Ms. Abell *Family Law Act* damages for loss of care, guidance, and companionship in the amount of \$5,000.

IV. Disposition

[192] I dismiss the plaintiffs' action and grant judgment in favour of the defendants.

[193] The defendants are presumptively entitled to costs. If the parties cannot agree, they can each make written submissions to me of no more than 1,000 words, supported by a bill of costs,

within two weeks of the release of these reasons for judgment. These are to be sent to my judicial assistant.

Justice Owen Rees

Released: July 23, 2025